

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.C.R. 1023
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Title

3 This constitutional amendment shall be known as the "Fair And
4 Independent Redistricting (F.A.I.R.) Commission Act of 2026".

5 2. Article IV, part 2, section 1, Constitution of Arizona, is
6 proposed to be amended as follows if approved by the voters and on
7 proclamation of the Governor:

8 1. Senate; house of representatives; members; special
9 session on petition of members; congressional and
10 legislative boundaries; citizen commissions

11 Section 1. ~~(1)~~ A. The senate shall be composed of one
12 member elected from each of the thirty legislative districts
13 established pursuant to this section.

14 B. The house of representatives shall be composed of
15 two members elected from each of the thirty legislative
16 districts established pursuant to this section.

17 ~~(2)~~ C. ~~Upon~~ ON the presentation to the governor of a
18 petition bearing the signatures of not less than two-thirds of
19 the members of each house, requesting a special session of
20 the legislature and designating the date of convening, the
21 governor shall promptly call a special session to assemble on
22 the date specified. At a special session so called the
23 subjects which may be considered by the legislature shall not
24 be limited.

25 ~~(3)~~ D. By ~~February 28~~ MARCH 15 of each year that ends
26 in one, ~~an~~ THE FAIR AND independent redistricting commission
27 shall be established to provide for the redistricting of
28 congressional and state legislative districts. The FAIR AND

1 independent redistricting commission shall consist of ~~five~~
2 ~~NINE~~ members. ~~No~~ NOT more than ~~two~~ THREE members of the FAIR
3 AND independent redistricting commission shall be members of
4 the same political party. ~~Of the first four members~~
5 ~~appointed, no more than two~~ FOUR OF THE COMMISSIONERS shall
6 reside in the ~~same~~ MOST POPULOUS county, TWO OF THE
7 COMMISSIONERS SHALL RESIDE IN THE SECOND MOST POPULOUS COUNTY,
8 TWO OF THE COMMISSIONERS SHALL RESIDE IN DIFFERENT COUNTIES OF
9 THE REMAINING COUNTIES AND THE FINAL MEMBER MAY RESIDE IN ANY
10 COUNTY. Each member shall be a registered Arizona voter who
11 has been continuously registered with the same political party
12 or registered as unaffiliated with a political party for three
13 or more years immediately preceding appointment, ~~AND~~ who is
14 committed to applying ~~the provisions of~~ this section in an
15 honest, independent and impartial fashion and to upholding
16 public confidence in the integrity of the redistricting
17 process. Within the three years previous to appointment,
18 members shall not have been appointed to, elected to, or a
19 candidate for any other public office, including precinct
20 committeeman or committeewoman but not including school board
21 member or officer, and shall not have served as an officer of
22 a political party, or served as a registered paid lobbyist or
23 as an officer of a candidate's campaign committee.

24 ~~(4)~~ E. The commission on appellate court appointments
25 shall nominate candidates for appointment to the FAIR AND
26 independent redistricting commission, except that, if a
27 politically balanced commission exists whose members are
28 nominated by the commission on appellate court appointments
29 and whose regular duties relate to the elective process, the
30 commission on appellate court appointments may delegate to
31 such existing commission (hereinafter called the commission on
32 appellate court appointments' designee) the duty of nominating
33 members for the FAIR AND independent redistricting
34 commission, ~~and~~ and all other duties assigned to the commission
35 on appellate court appointments in this section.

36 ~~(5)~~ F. By January 8 of years ending in one, the
37 commission on appellate court appointments or its designee
38 shall establish a pool of persons who are willing to serve on
39 and are qualified for appointment to the FAIR AND independent
40 redistricting commission. The pool of candidates shall
41 consist of ~~twenty-five~~ THIRTY nominees, with ten nominees from
42 each of the two largest political parties in Arizona based on
43 party registration, and ~~five~~ TEN NOMINEES who are not
44 registered with either of the two largest political parties in
45 Arizona.

1 ~~(6)~~ G. Appointments to the FAIR AND independent
2 redistricting commission shall be made in the order set forth
3 below. No later than January 31 of years ending in one, the
4 highest ranking officer elected by the Arizona house of
5 representatives shall make one appointment to the FAIR AND
6 independent redistricting commission from the pool of
7 nominees, followed by one appointment from the pool made in
8 turn by each of the following: the minority party leader of
9 the Arizona house of representatives, the highest ranking
10 officer elected by the Arizona senate, and the minority party
11 leader of the Arizona senate. FOLLOWING THESE APPOINTMENTS,
12 THE HIGHEST RANKING OFFICER ELECTED BY THE ARIZONA SENATE AND
13 THE HIGHEST RANKING OFFICER OF THE ARIZONA HOUSE OF
14 REPRESENTATIVES WHO IS A MEMBER OF THE SAME PARTY SHALL MAKE
15 ONE APPOINTMENT JOINTLY AND THE MINORITY PARTY LEADER OF THE
16 ARIZONA SENATE AND THE HIGHEST RANKING OFFICER OF THE ARIZONA
17 HOUSE OF REPRESENTATIVES WHO IS A MEMBER OF THE SAME PARTY
18 SHALL MAKE ONE APPOINTMENT JOINTLY. Each such official shall
19 have a seven-day period in which to make an appointment. EACH
20 MEMBER APPOINTED MUST BE A MEMBER OF THE SAME POLITICAL PARTY
21 AS THE PERSON WHO APPOINTS THE MEMBER. Any official who fails
22 to make an appointment within the specified time period will
23 forfeit the appointment privilege. ~~In the event that~~ IF there
24 are two or more minority parties within the house or the
25 senate, the leader of the largest minority party by statewide
26 party registration shall make the appointment.

27 ~~(7)~~ H. Any vacancy in the above ~~four~~ SIX FAIR AND
28 independent redistricting commission positions remaining as of
29 March ~~1~~ 15 of a year ending in one shall be filled from the
30 pool of nominees by the commission on appellate court
31 appointments or its designee. The appointing body shall strive
32 for political balance and fairness.

33 ~~(8)~~ I. At a meeting called by the secretary of state,
34 the ~~four~~ SIX FAIR AND independent redistricting commission
35 members shall select by majority vote from the nomination pool
36 ~~a fifth member~~ ESTABLISHED BY THE COMMISSION ON APPELLATE
37 COURT APPOINTMENTS THREE MEMBERS who shall not be registered
38 with any party already represented on the FAIR AND independent
39 redistricting commission and ~~who~~ shall DESIGNATE ONE OF THOSE
40 MEMBERS TO serve as chair. If the ~~four~~ SIX commissioners fail
41 to appoint ~~a fifth member~~ THE THREE MEMBERS within fifteen
42 days, the commission on appellate court appointments or its
43 designee, striving for political balance and fairness, shall
44 appoint ~~a fifth member~~ MEMBERS FOR ANY OF THE POSITIONS NOT
45 FILLED BY THE SIX COMMISSIONERS INCLUDING DESIGNATING A CHAIR
46 from the nomination pool, ~~who shall serve as chair.~~

1 ~~(9)~~ J. The ~~five~~ NINE commissioners shall then select
2 by majority vote one of their members to serve as vice-chair.

3 ~~(10)~~ K. After having been served written notice and
4 provided with an opportunity for a response, a member of the
5 FAIR AND independent redistricting commission may be removed
6 by the governor, with the concurrence of two-thirds of the
7 senate, for substantial neglect of duty, gross misconduct in
8 office, or inability to discharge the duties of office.

9 ~~(11)~~ L. If a commissioner or chair does not complete
10 the term of office for any reason, the commission on appellate
11 court appointments or its designee shall nominate a pool of
12 three candidates within the first thirty days after the
13 vacancy occurs. The nominees shall be of the same political
14 party or status as was the member who vacated the office at
15 the time of ~~his or her~~ appointment, and the appointment other
16 than the chair OR OTHER COMMISSIONER APPOINTED PURSUANT TO
17 SUBSECTION I OF THIS SECTION shall be made by the current
18 holder of the office designated to make the original
19 appointment. The appointment of a new chair OR OTHER
20 COMMISSIONER APPOINTED PURSUANT TO SUBSECTION I OF THIS
21 SECTION shall be made by the remaining commissioners. If the
22 appointment of a replacement commissioner or chair is not made
23 within fourteen days following the presentation of the
24 nominees, the commission on appellate court appointments or
25 its designee shall make the appointment, striving for
26 political balance and fairness. The newly appointed
27 commissioner shall serve out the remainder of the original
28 term.

29 ~~(12)~~ M. ~~Three~~ FIVE commissioners, ~~including the chair~~
30 ~~or vice-chair~~, constitute a quorum. ~~Three~~ FIVE or more
31 affirmative votes are required for any official action EXCEPT
32 THAT A VOTE TO APPROVE FINAL DISTRICT BOUNDARIES REQUIRES SIX
33 OR MORE AFFIRMATIVE VOTES. Where a quorum is present, the
34 FAIR AND independent redistricting commission shall conduct
35 business in meetings open to the public AND IN COMPLIANCE WITH
36 THE OPEN MEETING LAWS OF THIS STATE THAT ARE APPLICABLE TO
37 PUBLIC BODIES, EXCEPT with ~~48~~ FORTY-EIGHT or more hours public
38 notice provided.

39 ~~(13)~~ N. A commissioner, during the commissioner's term
40 of office and for three years thereafter, shall be ineligible
41 for Arizona public office or for registration as a paid
42 lobbyist.

1 ~~(14)~~ O. The FAIR AND independent redistricting
2 commission shall establish congressional and legislative
3 districts. The commencement of the mapping process for both
4 the congressional and legislative districts shall be the
5 creation of districts of equal population in a grid-like
6 pattern across the state. Adjustments to the grid shall then
7 be made as necessary to accommodate the goals as set forth
8 below:

9 ~~A.~~ 1. Districts shall comply with the United States
10 Constitution and the United States voting rights act. ~~;~~

11 ~~B.~~ 2. Congressional districts shall have equal
12 population to the extent practicable, and state legislative
13 districts shall have equal population to the extent
14 practicable. ~~;~~ SO THAT THE POPULATION OF THE LARGEST
15 LEGISLATIVE DISTRICT BY POPULATION SHALL NOT EXCEED THE
16 POPULATION OF THE SMALLEST LEGISLATIVE DISTRICT BY POPULATION
17 BY MORE THAN ~~[FIVE THOUSAND PERSONS]~~ [FIVE PERCENT].

18 ~~C.~~ 3. Districts shall be geographically compact and
19 contiguous to the extent practicable. ~~;~~

20 ~~D.~~ 4. District boundaries shall respect communities of
21 interest to the extent practicable. ~~;~~

22 ~~E.~~ 5. To the extent practicable, district lines shall
23 use visible geographic features, city, town and county
24 boundaries, ~~;~~ and undivided census tracts. ~~;~~

25 ~~F.~~ 6. To the extent practicable, competitive districts
26 should be favored where to do so would create no significant
27 detriment to the other goals.

28 ~~(15)~~ P. Party registration and voting history data
29 shall be excluded from the initial phase of the mapping
30 process but may be used to test maps for compliance with the
31 above goals. The places of residence of incumbents or
32 candidates shall not be identified or considered.

33 ~~(16)~~ Q. The FAIR AND independent redistricting
34 commission shall advertise a draft map of congressional
35 districts and a draft map of legislative districts to the
36 public for comment, which comment shall be taken for at least
37 thirty days. Either or both bodies of the legislature may act
38 within this period to make recommendations to the FAIR AND
39 independent redistricting commission by memorial or by
40 minority report, which recommendations shall be considered by
41 the FAIR AND independent redistricting commission. The FAIR
42 AND independent redistricting commission shall then establish
43 final district boundaries.

1 ~~(17)~~ R. The provisions regarding this section are
2 self-executing. The FAIR AND independent redistricting
3 commission shall certify to the secretary of state the
4 establishment of congressional and legislative districts.

5 ~~(18)~~ S. ~~Upon~~ ON approval of this amendment, the
6 department of administration or its successor shall make
7 adequate office space available for the FAIR AND independent
8 redistricting commission. The STATE treasurer ~~of the state~~
9 shall make \$6,000,000 available for the work of the FAIR AND
10 independent redistricting commission pursuant to the year 2000
11 census. Unused monies shall be returned to the ~~state's~~ STATE
12 general fund. In years ending in eight or nine after the year
13 2001, the department of administration or its successor shall
14 submit to the legislature a recommendation for an
15 appropriation for adequate redistricting expenses and shall
16 make available adequate office space for the operation of the
17 FAIR AND independent redistricting commission. The
18 legislature shall make the necessary appropriations by a
19 majority vote.

20 ~~(19)~~ T. The FAIR AND independent redistricting
21 commission, with fiscal oversight from the department of
22 administration or its successor, shall have procurement and
23 contracting authority and may hire staff and consultants for
24 the purposes of this section, including legal representation.

25 ~~(20)~~ U. The FAIR AND independent redistricting
26 commission shall have standing in legal actions regarding the
27 redistricting plan and the adequacy of resources provided for
28 the operation of the FAIR AND independent redistricting
29 commission. The FAIR AND independent redistricting commission
30 shall have sole authority to determine whether the Arizona
31 attorney general or counsel hired or selected by the FAIR AND
32 independent redistricting commission shall represent the
33 people of Arizona in the legal defense of a redistricting
34 plan.

35 ~~(21)~~ V. Members of the FAIR AND independent
36 redistricting commission are eligible for reimbursement of
37 expenses pursuant to law, and a member's residence is deemed
38 to be the member's post of duty for purposes of reimbursement
39 of expenses.

40 ~~(22)~~ W. Employees of the department of administration
41 or its successor shall not influence or attempt to influence
42 the district-mapping decisions of the FAIR AND independent
43 redistricting commission.

1 ~~(23)~~ X. Each commissioner's duties established by this
2 section expire ~~upon~~ ON the appointment of the first member of
3 the next FAIR AND INDEPENDENT redistricting commission. The
4 FAIR AND independent redistricting commission shall not meet
5 or incur expenses after the redistricting plan is completed,
6 except if litigation or any government approval of the plan is
7 pending, or to revise districts if required by court decisions
8 or if the number of congressional or legislative districts is
9 changed.
10 3. The Secretary of State shall submit this proposition to the
11 voters at the next general election as provided by article XXI,
12 Constitution of Arizona.

13 Enroll and engross to conform
14 Amend title to conform

AARON MÁRQUEZ

SCR1023MÁRQUEZ.docx
03/24/2026
10:11 AM
C: ED
130QMMIOD